

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CRYSTAL MARIE DE LA CRUZ,

Plaintiff,

-against-

Index No. 451299/2019

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, INWOOD BAR & GRILL,
CASTILLO SECURITY CORP., P.O. SERRANO and
"JOHN DOE", first and last names being fictitious,

Defendants.

-----X

Plaintiff, by her attorneys, REDMOND LAW PLLC complaining of the defendants, all
upon information and belief, respectfully states and alleges as follows:

1. That at all times herein mentioned, the plaintiff was and still is a resident of the
County of Bronx, City and State of New York.

2. That at all times herein mentioned, the occurrence that gave rise to this action
occurred in the County, City and State of New York.

3. That upon information and belief, at all times herein mentioned, the defendant THE
CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under
and by the virtues of the laws of the State of New York.

4. That upon information and belief, at all times herein mentioned, the defendant THE
NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly
organized and existing under and by the virtues of the laws of the State of New York.

5. That at all times herein mentioned the defendant, THE CITY OF NEW YORK
(hereinafter "CITY") was a public benefit corporation, duly organization and existing under and
by virtue of the laws of the State of New York.

6. That at all times herein mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "POLICE DEPARTMENT") was a public benefit corporation, duly organization and existing under and by virtue of the laws of the State of New York.

7. That upon information and belief, at all times herein mentioned, the defendant INWOOD BAR & GRILL (said defendant hereinafter referred to as "INWOOD") was a domestic corporation duly organized and existing under and by the virtues of the laws of the State of New York.

8. That upon information and belief, at all times herein mentioned, the defendant INWOOD was a foreign corporation duly authorized to do business within the State of New York.

9. That upon information and belief, at all times herein mentioned, the defendant INWOOD was a partnership transacting business in the State of New York.

10. That upon information and belief, at all times herein mentioned, the defendant INWOOD was a business entity doing business within the State of New York.

11. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of plaintiff, CRYSTAL MARIE DE LA CRUZ, upon defendants, CITY and POLICE DEPARTMENT, in accordance with Section 50-e of the General Municipal Law.

12. Although more than thirty (30) days have elapsed since service of such Notice of Claim, defendants, CITY and POLICE DEPARTMENT, has neglected and refused to pay said claim or adjust same.

13. A hearing pursuant to General Municipal Law 50-h has been held.

14. This action is commenced within one (1) year and ninety (90) days from September 30, 2018, the date the accident as herein set forth occurred.

15. That upon information and belief, at all times herein mentioned, the defendant CASTILLO SECURITY CORP. (said defendant hereinafter referred to as “CASTILLO”) was a domestic corporation duly organized and existing under and by the virtues of the laws of the State of New York.

16. That upon information and belief, at all times herein mentioned, the defendant CASTILLO was a foreign corporation duly authorized to do business within the State of New York.

17. That upon information and belief, at all times herein mentioned, the defendant CASTILLO was a partnership transacting business in the State of New York.

18. That upon information and belief, at all times herein mentioned, the defendant CASTILLO was a business entity doing business within the State of New York.

19. That at all herein mentioned, the defendant P.O SERRANO, (hereinafter “SERRANO”) was and still is a resident of the County, City and State of New York.

20. That at all herein mentioned, the defendant JOHN DOE, (hereinafter “DOE”) was and still is a resident of the County of New York, City and State of New York.

21. That on or about September 30, 2018, defendant, INWOOD, owned the premises known as Inwood Bar & Grill and located at 4892 Broadway, New York, New York 10034.

22. That on or about said date, the defendant INWOOD was the lessee of the said subject premises.

23. That on or about said date, the defendant INWOOD lessor of the said subject premises.

24. That on or about said date, the defendant INWOOD managed the said subject premises.

25. That on or about said date, the defendant INWOOD was the managing agent of said subject premises.

26. That on or about said date, at all times mentioned herein the defendant INWOOD occupied the said subject premises.

27. That on or about said date, and at all times mentioned herein the defendant INWOOD controlled the said subject premises.

28. That on or about said date, and at all times mentioned herein the defendant INWOOD was responsible for security services on the said subject premises.

29. That on said date at all times herein mentioned, the defendant INWOOD was in the business of being a bar open to the general public.

30. That on or about September 30, 2018, defendant, CASTILLO, manage and was responsible for the security of the premises known as Inwood Bar & Grill and located at 4892 Broadway, New York, New York 10034.

31. That on or about said date, at all times mentioned herein the defendant CASTILLO was responsible for the security of the subject premises.

32. That on or about said date, and at all times mentioned herein the defendant CASTILLO controlled the subject premises.

33. That on or about said date, and at all times mentioned herein the defendant CASTILLO was responsible for security services on the subject premises.

34. That on said date at all times herein mentioned, the defendant CASTILLO was in the business of being a security company providing security services to Inwood Bar and Grill.

35. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY AGAINST THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND P.O. SERRANO

36. That on or about September 30, 2018, in the County of New York, City of New York, the plaintiff CRYSTAL MARIE DE LA CRUZ was intentionally touched, pushed, assaulted, battered, violated and humiliated in the most egregious and excessive manner by the SERRANO, who was acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

37. That on or about September 30, 2018, SERRANO, acting as agents and on behalf of the CITY and POLICE DEPARTMEN within the scope of his employment, did intentionally, willfully and maliciously assault and batter the Plaintiff CRYSTAL MARIE DE LA CRUZ in the most egregious and excessive matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff CRYSTAL MARIE DE LA CRUZ and his act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff CRYSTAL MARIE DE LA CRUZ and caused such battery in and about her head, shoulders, feet, arms, body and limbs.

38. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff CRYSTAL MARIE DE LA CRUZ suffered great and permanent bodily injury in and about her head, shoulders, feet, arms, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

39. That as a result of the aforesaid assault and battery the Plaintiff CRYSTAL MARIE DE LA CRUZ was caused to sustain serious, severe, painful and permanent bodily injuries so that

she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

40. That at all times hereinafter mentioned the actions of CITY, POLICE DEPARTMENT and SERRANO as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

41. That by reason of the foregoing, Plaintiff CRYSTAL MARIE DE LA CRUZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT

42. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

43. At all times mentioned herein and above, defendants CITY and POLICE DEPARTMENT employed SERRANO as police officer and named defendant were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

44. Plaintiff CRYSTAL MARIE DE LA CRUZ is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

45. The above actions of defendants CITY, POLICE DEPARTMENT and SERRANO resulted in Plaintiff CRYSTAL MARIE DE LA CRUZ being deprived of the following rights under the United States Constitution: a) Freedom from assault to her person; b) Freedom from battery to her person; c) Freedom from malicious prosecution.

46. In addition to the above, defendants CITY and POLICE DEPARTMENT have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the assault of plaintiff, regarding the protection of the constitutional rights of citizens.

47. Defendants CITY, POLICE DEPARTMENT and SERRANO subjected Plaintiff CRYSTAL MARIE DE LA CRUZ to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff CRYSTAL MARIE DE LA CRUZ's rights and with deliberate indifference to the United States Constitution.

48. The direct and proximate result of the defendants CITY, POLICE DEPARTMENT and SERRANO acts are that Plaintiff CRYSTAL MARIE DE LA CRUZ has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community,

49. That by reason of the foregoing, Plaintiff CRYSTAL MARIE DE LA CRUZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT

50. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

51. That the defendats, CITY and POLICE DEPARTMENT, were negligent in hiring, retaining, training and supervising of their agents, servants and/or employees including but not limited to the defendant, SERRANO.

52. That the defendants, CITY and POLICE DEPARTMENT were negligent in issuing and permitting defendant, SERRANO, to be employee of the defendants, CITY and POLICE DEPARTMENT, who were unstable and a danger to the public at large.

53. That the Defendants CITY and POLICE DEPARTMENT, their agents, servants and/or employees were negligent, careless and reckless in causing, allowing and/or permitting defendant SERRANO to assault and batter plaintiff. That the defendants, CITY and POLICE DEPARTMENT, their agents, servants and/or employees knew or should have known of the unruly, vicious, assaultive and dangerous propensity of defendant, SERRANO, that the defendants, CITY and POLICE DEPARTMENT negligently retained and/or supervised defendant, SERRANO and failed to discharge them.

54. That the defendant, SERRANO, acting in its capacity as Police Officers, wrongfully, carelessly and/or deliberately assaulted the claimant.

55. That the defendants, CITY and POLICE DEPARTMENT, their agents, servants and/or employees, were negligent in continuing to employ as police officers, defendant, SERRANO, with its known instability and propensity for irrational actions; in continuing to employ defendant SERRANO, who had a prior record and history of unstable, negligent and irrational acts; in continuing to permit defendant, SERRANO, to remain in its positions as a police officers, with the foreseeable consequence of injuring members of the public and in particular the claimant herein when called upon to perform its duties as a peace officers in the State of New York; in failing to properly examine, supervise and review the conduct of defendant, SERRANO during its employment as New York City Police Officers.

56. Due to the above, the plaintiff, CRYSTAL MARIE DE LA CRUZ, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT

57. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

58. That the CITY, POLICE DEPARTMENT, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SERRANO, in that said police officers, as employees of CITY and POLICE DEPARTMENT, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and POLICE DEPARTMENT.

59. That CITY and POLICE DEPARTMENT failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

60. That the CITY and POLICE DEPARTMENT failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

61. Defendant CITY and POLICE DEPARTMENT were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and POLICE DEPARTMENT and that due to their lack of

training, these officers should have had adequate supervision so that they would not assault individuals.

62. That by reason of the above, the Plaintiff CRYSTAL MARIE DE LA CRUZ was injured in mind and body and rendered sick, sore, and damaged.

63. That at all times hereinafter mentioned the actions of CITY and POLICE DEPARTMENT and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

64. That by reason of the foregoing, Plaintiff CRYSTAL MARIE DE LA CRUZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**FIFTH CAUSE OF ACTION AGAINST THE P.O. SERRANO CITY OF NEW YORK
AND THE NEW YORK CITY POLICE DEPARTMENT**

65. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

66. That on or about September 30, 2018, plaintiff requested that the defendants obtain medical assistance for plaintiff's injuries.

67. Upon information and belief, defendants, their agents, servants and/or employees were negligent in negligently and carelessly failing to obtain treatment and care for the plaintiff in a careful and skillful manner; in negligently and carelessly failing to properly obtain treatment for the condition from which plaintiff, was suffering; in negligently and carelessly failing to render prompt corrective measures and treatment to the plaintiff, in negligently hiring, training and supervising their agents, servants, and/or employees to seek appropriate medical treatment for plaintiff in wrongfully, illegally, violently and without probable cause or justification grabbing, shoving, beating, tackling and restraining the plaintiff; in negligently and carelessly using excessive force, deprivation of civil liberties, and malicious prosecution; in negligently and

carelessly failing to take such necessary steps and precautions that would have prevented the happening of the occurrence complained of; in being negligent and careless in that prior to and at the time of the acts complained of herein, due to the prior history of the police officers/ employees involved, knew or should have known the vicious propensities and bad dispositions of the police officers involved; in negligently and carelessly hiring and training of the subject police officers; in negligently and carelessly failing to provide proper training supervision of the police; and in acting in reckless disregard for the safety of others and the defendant, its agents, servants and/or employees and/or contractors were otherwise reckless and careless in the premises.

68. That the foregoing was caused without any negligence on the part of the plaintiff, CRYSTAL MARIE DE LA CRUZ, contributing thereto.

69. That as a result of the foregoing, plaintiff, CRYSTAL MARIE DE LA CRUZ, was rendered sick, sore, lame and disabled, suffered injuries both internal and external; pain and mental anguish, disfigurement, requiring plaintiff to be incapacitated for an extended period of time; requiring plaintiff to incur medical costs in the past; and upon information and belief, in the future.

70. Due to the above the plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

71. That by reason of the foregoing the plaintiff sustained severe injuries to various parts of plaintiff's body; that plaintiff suffered and will continue to suffer for some time to come great pain and anguish in body and mind; that plaintiff received necessary hospital care and attention for a long period of time; that plaintiff necessarily received and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred; that as a result of the injuries sustained by plaintiff, plaintiff may, in the future, require further hospital and medical care and attention; that plaintiff has been unable to return to plaintiff's usual

duties and occupation as plaintiff had theretofore done and, upon information and belief, plaintiff's injuries are permanent, protracted and disabling in nature all to plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

72. That this action falls within one or more of the exceptions contained in CPLR § 1602.

SIXTH CAUSE OF ACTION FOR ASSAULT AND BATTERY AGAINST " AND
INWOOD BAR & GRILL

73. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

74. Upon information and belief, at all times herein mentioned, defendant INWOOD hired "DOE" as employee.

75. Upon information and belief, at all times herein mentioned, defendant INWOOD hired defendant "DOE" as a security guard.

76. Upon information and belief, at all times herein mentioned, defendant "DOE" was acting in the course of his employment for defendant INWOOD.

77. On September 30, 2018 defendant INWOOD as the owner, operator, supervisor and manager of the bar and the employees within the premises had a duty to protect the plaintiff from injury while plaintiff was lawfully within the premises.

78. That on or about September 30, 2018, defendant, DOE, was responsible for the security of the defendant INWOOD's establishment.

79. That the plaintiff was lawfully on the defendants' subject premises.

80. That on said date, the defendants by their agents, servants and or employees, disregarded their duty to properly supervise, maintain and control the safety and security of those

persons on its premises, and permitted and allowed plaintiff to be placed in a dangerous and precarious condition, thereby sustaining serious injuries.

81. That on September 30, 2018 plaintiff was violently contacted by defendant's employee DOE without cause, provocation or justification while in the course of his employment as an employee of defendant INWOOD and while plaintiff was lawfully within the premises.

82. That as a result of the foregoing plaintiff CRYSTAL MARIE DE LA CRUZ was seriously and permanently injured.

83. That the said occurrence and the injuries resulting CRYSTAL MARIE DE LA CRUZ were caused solely and wholly by reason of the negligence and carelessness of defendant INWOOD in the ownership, operation, management, maintenance, control, security and supervision of the bar.

84. That as a result of the foregoing, plaintiff, CRYSTAL MARIE DE LA CRUZ was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants INWOOD and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

85. That by reason of the foregoing, plaintiff, CRYSTAL MARIE DE LA CRUZ has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

86. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

**SEVENTH CAUSE OF ACTION RESPONDEAT SUPERIOR AGAINST INWOOD BAR
& GRILL**

87. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

88. That defendant employer INWOOD is vicariously liable for its employee DOE negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts were committed within the scope of the employee's employment.

89. That defendant employer INWOOD is vicariously liable for its employee defendant DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts and the employee's conduct was generally foreseeable and a natural consequence of the employment. 81. That defendant employer INWOOD is vicariously liable for its employee DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts and the employee's violent conduct could have been reasonably anticipated by defendant employer INWOOD.

90. That defendant employer INWOOD is vicariously liable for its employee defendant DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts by defendant employee DOE were a minor deviation from work-related activities is still acting within the scope of his employment for the purposes of respondeat superior.

91. That as a result of the foregoing plaintiff CRYSTAL MARIE DE LA CRUZ was seriously and permanently injured.

92. That said occurrence and the resulting injuries to plaintiff CRYSTAL MARIE DE LA CRUZ were caused solely and wholly by reason of the negligence and carelessness of

defendant INWOOD in the ownership, operation, management, maintenance, control, security and supervision of the bar and employees within the premises.

93. That as a result of the foregoing, plaintiff CRYSTAL MARIE DE LA CRUZ was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants INWOOD and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

94. That by reason of the foregoing, plaintiff CRYSTAL MARIE DE LA CRUZ has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

95. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

**EIGHT CAUSE OF ACTION NEGLIGENT HIRING/SUPERVISION/RETENTION
AGAINST INWOOD BAR & GRILL**

96. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

97. That defendant employer INWOOD negligently hired and/or retained defendant employee DOE with knowledge of defendant employee's propensity for the type of behavior which resulted in plaintiff's injuries in this action.

98. That defendant employer INWOOD negligently placed the defendant employee DOE in a position to cause foreseeable harm, which most probably would not have occurred had the employer taken reasonable care in the hiring of employees.

99. That defendant employer INWOOD negligently hired and/or retained defendant employee DOE, negligently placed defendant employee DOE in a position to cause foreseeable

harm, which plaintiff would not have been subjected to had defendant employer INWOOD taken reasonable care in supervising or retaining the defendant employee DOE.

100. That defendant employer INWOOD knew or should have known of the defendant employee DOE'S propensity for the conduct that caused plaintiff's injuries.

101. That defendant employer INWOOD negligently failed to properly train and/or supervise defendant employee DOE.

102. That as a result of the foregoing plaintiff was seriously and permanently injured.
95. That said occurrence and the resulting injuries to plaintiff were caused solely and wholly by reason of the negligence and carelessness of defendant employer INWOOD in the ownership, operation, management, maintenance, control, security and supervision of the bar and employees within the premises.

103. That as a result of the foregoing, plaintiff was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants INWOOD and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

104. That by reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

105. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

NINTH CAUSE OF ACTION NEGLIGENCE AGAINST INWOOD BAR & GRILL

106. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

107. On September 30, 2018, defendant INWOOD owned, operated, managed, maintained, controlled, secured and supervised the crane company and employees within the premises where defendant's employees perform works.

108. On September 30, 2018, defendant INWOOD as the owner, operator, supervisor and manager of the premises and the employees within the premises had a duty to protect the plaintiff from injury while plaintiff was lawfully within the premises where defendant's employees were performing works.

109. That on September 30, 2018 while lawfully upon the premises where defendant's employees were performing works, plaintiff was caused to be injured solely and wholly due to the negligence and carelessness of defendant INWOOD.

110. That solely and wholly by reason of the foregoing, plaintiff was injured. 104. That said occurrence and the resulting injuries to plaintiff were caused solely and wholly by reason of the negligence and carelessness of defendant INWOOD in the ownership, operation, management, maintenance, control, security and supervision of the crane company and the employees within the premises where defendant's employees were performing works. 105. That as a result of the foregoing, plaintiff was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants INWOOD and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

111. That by reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

112. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

**TENTH CAUSE OF ACTION FOR ASSAULT AND BATTERY AGAINST "JOHN
DOE" AND CASTILLO SECURITY CORP**

113. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

114. Upon information and belief, at all times herein mentioned, defendant CASTILLO hired "DOE" as employee.

115. Upon information and belief, at all times herein mentioned, defendant CASTILLO hired defendant "DOE" as a security guard.

116. Upon information and belief, at all times herein mentioned, defendant "DOE" was acting in the course of his employment for defendant CASTILLO.

117. On September 30, 2018 defendant CASTILLO as the owner, operator, supervisor and manager of the bar and the employees within the premises had a duty to protect the plaintiff from injury while plaintiff was lawfully within the premises.

118. That on or about September 30, 2018, defendant, DOE, was responsible for the security of Inwood Bar and Grill.

119. That the plaintiff was lawfully on the subject premises.

120. That on said date, the defendants by their agents, servants and or employees, disregarded their duty to properly supervise, maintain and control the safety and security of those persons on its premises, and permitted and allowed plaintiff to be placed in a dangerous and precarious condition, thereby sustaining serious injuries.

121. That on September 30, 2018 plaintiff was violently contacted by defendant's employee DOE without cause, provocation or justification while in the course of his employment as an employee of defendant CASTILLO and while plaintiff was lawfully within the premises.

122. That as a result of the foregoing plaintiff CRYSTAL MARIE DE LA CRUZ was seriously and permanently injured.

123. That the said occurrence and the injuries resulting CRYSTAL MARIE DE LA CRUZ were caused solely and wholly by reason of the negligence and carelessness of defendant CASTILLO in the ownership, operation, management, maintenance, control, security and supervision of the bar.

124. That as a result of the foregoing, plaintiff, CRYSTAL MARIE DE LA CRUZ was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants CASTILLO and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

125. That by reason of the foregoing, plaintiff, CRYSTAL MARIE DE LA CRUZ has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

126. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

ELEVENTH CAUSE OF ACTION
RESPONDEAT SUPERIOR CASTILLO SECURITY CORP

127. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

128. That defendant employer CASTILLO is vicariously liable for its employee DOE negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts were committed within the scope of the employee's employment.

129. That defendant employer CASTILLO is vicariously liable for its employee defendant DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his

employment as those acts and the employee's conduct was generally foreseeable and a natural consequence of the employment.

130. That defendant employer CASTILLO is vicariously liable for its employee DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts and the employee's violent conduct could have been reasonably anticipated by defendant employer CASTILLO.

131. That defendant employer CASTILLO is vicariously liable for its employee defendant DOE'S negligent and/or intentional acts of violently contacting plaintiff CRYSTAL MARIE DE LA CRUZ without cause, provocation or justification while in the course of his employment as those acts by defendant employee DOE were a minor deviation from work-related activities is still acting with the scope of his employment for the purposes of respondeat superior.

132. That as a result of the foregoing plaintiff CRYSTAL MARIE DE LA CRUZ was seriously and permanently injured.

133. That said occurrence and the resulting injuries to plaintiff CRYSTAL MARIE DE LA CRUZ were caused solely and wholly by reason of the negligence and carelessness of defendant CASTILLO in the ownership, operation, management, maintenance, control, security and supervision of the bar and employees within the premises.

134. That as a result of the foregoing, plaintiff CRYSTAL MARIE DE LA CRUZ was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants CASTILLO and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

135. That by reason of the foregoing, plaintiff CRYSTAL MARIE DE LA CRUZ has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

136. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

TWELFTH CAUSE OF ACTION
NEGLIGENT HIRING/SUPERVISION/RETENTION AGAINST CASTILLO
SECURITY CORP

137. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

138. That defendant employer CASTILLO negligently hired and/or retained defendant employee DOE with knowledge of defendant employee's propensity for the type of behavior which resulted in plaintiff's injuries in this action.

139. That defendant employer CASTILLO negligently placed the defendant employee DOE in a position to cause foreseeable harm, which most probably would not have occurred had the employer taken reasonable care in the hiring of employees.

140. That defendant employer CASTILLO negligently hired and/or retained defendant employee DOE, negligently placed defendant employee DOE in a position to cause foreseeable harm, which plaintiff would not have been subjected to had defendant employer CASTILLO taken reasonable care in supervising or retaining the defendant employee DOE.

141. That defendant employer CASTILLO knew or should have known of the defendant employee DOE'S propensity for the conduct that caused plaintiff's injuries.

142. That defendant employer CASTILLO negligently failed to properly train and/or supervise defendant employee DOE.

143. That as a result of the foregoing plaintiff was seriously and permanently injured.

144. That said occurrence and the resulting injuries to plaintiff were caused solely and wholly by reason of the negligence and carelessness of defendant employer CASTILLO in the ownership, operation, management, maintenance, control, security and supervision of the bar and employees within the premises.

145. That as a result of the foregoing, plaintiff was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants CASTILLO and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

146. That by reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

147. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

THIRTEENTH CAUSE OF ACTION
NEGLIGENCE AGAINST CASTILLO SECURITY CORP

148. Plaintiff repeats, reiterates and realleges the allegations set forth in the paragraphs above as if set forth fully herein and at length.

149. On September 30, 2018, defendant CASTILLO, managed, maintained, controlled, secured and supervised Inwood Bar and Grill.

150. On September 30, 2018, defendant CASTILLO as the security company, operator, supervisor and manager of the premises and the employees within the premises had a duty to protect the plaintiff from injury while plaintiff was lawfully within the premises.

151. That on September 30, 2018 while lawfully upon the subject premises, plaintiff was caused to be injured solely and wholly due to the negligence and carelessness of defendant CASTILLO.

152. That solely and wholly by reason of the foregoing, plaintiff was injured.

153. That said occurrence and the resulting injuries to plaintiff were caused solely and wholly by reason of the negligence and carelessness of defendant CASTILLO in the ownership, operation, management, maintenance, control, security and supervision of the security company and the employees within the premises.

154. That as a result of the foregoing, plaintiff was injured solely and wholly as a result of the negligence, carelessness and recklessness of the defendants CASTILLO and DOE and/or each of them, without any negligence on the part of the plaintiff contributing thereto.

155. That by reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

156. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

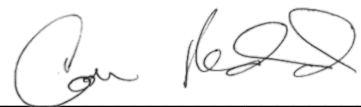
CLAIM FOR PUNITIVE DAMAGES

157. The Plaintiff makes a claim for punitive damages against the Defendants' in this action.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, together with the costs and disbursements of this action.

Dated: New York, New York
December 17, 2019

REDMOND LAW PLLC

By: 

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989

VERIFICATION

STATE OF NEW YORK }
 } ss:
COUNTY OF NEW YORK }

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am a member of the firm REDMOND LAW PLLC, attorneys of record for the plaintiff in the within action; I have read the foregoing

AMENDED COMPLAINT

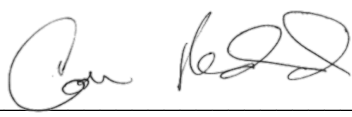
and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true. The reason this verification is made by me and not by the plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my knowledge, are as follows: entire file maintained in your deponent's offices, investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York

December 17, 2019

By: 
Cornelius Redmond, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No. 451299/2019

CRYSTAL MARIE DE LA CRUZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, INWOOD
BAR & GRILL, CASTILLO SECURITY CORP., P.O. SERRANO and "JOHN DOE", first
and last names being fictitious,**

Defendants.

AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT

**REDMOND LAW PLLC
Attorneys for Plaintiff
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989**

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the
Courts of New York State, certifies that, upon information and belief and reasonable inquiry,
the contentions contained in the annexed document are not frivolous



**CORNELIUS REDMOND, ESQ.
REDMOND LAW PLLC**

[] Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

[] Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

**REDMOND LAW PLLC
80 Broad St., Suite 1202
New York, NY 10004
(212) 799-8989**
